CITY OF OPA-LOCKA
"The Great City"

Clerk's Action Summary Minutes
Regular Commission Meeting
July 22, 2009
7:00 P.M.
City Commission Chambers
777 Sharazad Boulevard
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Joseph L. Kelley called the meeting to order at 7:00 p.m. on Wednesday, July 22, 2009 in the City Commission Chambers, 777 Sharazad Boulevard, Opa-locka, Florida, 33054.

2. ROLL CALL:

The following members of the City Commission were present: Vice Mayor Myra L. Taylor, Commissioner Timothy Holmes, Commissioner Dorothy Johnson and Mayor Joseph L. Kelley. Also in attendance were: Interim City Manager Bryan K. Finnie, City Attorney Burnadette Norris-Weeks, and City Clerk Deborah S. Irby. Commissioner Rose Tydus was not in attendance due to illness.

3. INVOCATION:

The Invocation was delivered by Mayor Joseph L. Kelley.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. APPROVAL OF AGENDA:

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

Request to amend the agenda of the Regular Commission Meeting of July 22, 2009 to include the following resolutions:

12-1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO EXECUTE AN EXTENSION TO THE LAWN SERVICE MAINTENANCE AGREEMENT BETWEEN THE CITY OF OPA-LOCKA AND MY LAWN SERVICE, INC., FOR A PERIOD OF NINETY (90) DAYS BEGINNING JULY 1, 2009 AT A COST OF SIXTY

ONE THOUSAND TWO HUNDRED AND FIFTY DOLLARS ($61,250.00) AND FURTHER AUTHORIZING THE CITY MANAGER TO ISSUE AN INVITATION FOR BID (ITB) FOR LAWN MAINTENANCE SERVICES. *Sponsored by C.M.*

It was moved by Vice Mayor Taylor; motion on amendment 12-1 died for lack of a second.

12-2: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING THE SETTLEMENT AGREEMENT IN THE MATTER OF CITY OF OPA-LOCKA VS. KUBICKI DRAPER, P.A. AND M SECURITIES INVESTMENT, INC. AND AUTHORIZING THE CITY MANAGER TO ACCEPT PAYMENT FROM SAID DEFENDENTS IN THE TOTAL AMOUNT OF THIRTY SEVEN THOUSAND FIVE HUNDRED DOLLARS ($37,500.00), AS FULL AND FINAL SETTLEMENT OF ALL CLAIMS AND DISMISSAL. *Sponsored by C.A.*

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to amend the agenda to include the above resolution as item 12-2.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Vice Mayor Taylor	Yes
Commissioner Tydus	Not present
Mayor Kelley	Yes

12-3: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ACCEPTING AN AWARD OF COMMUNITY DEVELOPMENT BLOCK GRANT (CDBG) FUNDS FROM THE MIAMI-DADE COUNTY OFFICE OF COMMUNITY AND ECONOMIC DEVELOPMENT (OCED) FOR FISCAL YEARS 2002-2009 IN THE AMOUNT OF SEVENTY FIVE THOUSAND DOLLARS ($75,000.00) FOR THE SHERBONDY PARK IMPROVEMENT PROJECT; FURTHER AUTHORIZING THE CITY MANAGER TO ENTER INTO AND EXECUTE AN AMENDMENT TO THE AGREEMENT BETWEEN THE CITY OF OPA-LOCKA AND OCED FOR ACCEPTANCE OF CDBG GRANT FUNDS. *Sponsored by C.M.*

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to amend the agenda to include the above resolution as item 12-3.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Johnson	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Tydus	Not present
Mayor Kelley	Yes

12:4: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ENTER INTO AN AGREEMENT WITH ATLAS PACKAGING, INC. FOR WASTEWATER INFRASTRUCTURE IMPROVEMENT RELATED TO THE REHABILITATION OF PUMP STATION NO. 14 AT A COST NOT TO EXCEED TWO HUNDRED THOUSAND DOLLARS ($200,000.00); PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

Upon the request of Manager Finnie, the above item was deferred until September 2009.

Additionally, Manager Finnie deferred agenda item 15-10.

Vice Mayor Taylor pulled 15-3, Commissioner Holmes pulled 15-4 and 15-6 and Commissioner Johnson pulled 15-2 from the Consent Agenda.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Holmes	Yes
Commissioner Tydus	Not present
Commissioner Johnson	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

Battalion Chief Danny Cardeso of Miami-Dade Fire Rescue came forward to address any questions and/ or concerns of the City Commission. There were no concerns from the City Commission.

7. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

8. APPROVAL OF MINUTES:

Regular Commission Meeting – July 8, 2009

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to approve the minutes of the Regular Commission Meeting of July 8, 2009.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Tydus	Not present
Commissioner Johnson	Yes
Vice Mayor Taylor	Yes

Commissioner Holmes	Yes
Mayor Kelley	Yes

9. DISTRICT ONE - COUNTY COMMISSIONER REPORT:

Mark Brown, Assistant to District 1 Miami-Dade County Commissioner Barbara Jordan came forward and briefly discussed a Health Fair Clinic providing free health screening for children 18 yrs & younger on Friday, July 24, 2009. He stated that Commissioner Jordan is working diligently in terms of the budget although there's a $427,000,000.00 deficit; however, she is definitely for social service which includes providing services to seniors, public safety, veterans, Community Based Organizations (CBO's), small businesses and saving as many jobs as possible. He further announced a Town Hall Meeting sponsored by Commissioner Jordan on August 11, 2009 at 6:00p.m. @ North Dade Library and encouraged the residents to come out and ask questions relating to the county's budget.

Mr. Brown continued by providing details on a meeting he attended earlier that day on the Superbowl 2010 in which the City of Opa-locka and district 1 would play an intricate part in. The Community Image Board chaired by Dennis Moss is looking at all the aesthetics throughout Miami-Dade County and the main arteries for improvements in preparation for the Superbowl.

Mayor Kelley directed the City Manager to make sure a representative from the city is in attendance at all future CIB meetings.

Commissioner Johnson said she noticed that maintenance is taking place on SR9; however, the debris from the lawn is on the streets and that too should be addressed.

Mr. Brown indicated that SR9 falls under the Florida Department of Transportation (FDOT).

Commissioner Johnson agreed to provide her concern to the City Manager since SR9 falls under FDOT.

She further expressed the community's gratitude for Commissioner Jordan's struggle on the Children's Trust to continue the headstart program.

10. PUBLIC PRESENTATION:

1. Florida International University (FIU) re: Neighborhood HELP Program

Virginia Harvin of 2040 NW 13th Court, Miami Gardens, Florida came forward on behalf of FIU College of Medicine, 11200 SW 8th Street, Miami, Florida and briefly provided an overview of the Neighborhood HELP Program.

10a. CITIZENS' FORUM:

1. Thomas Thompson of 2000 Service Road, Opa-locka, Florida, came forward to express his concern about being charged for sewer at the car wash which he operates on NW 22nd Avenue and Service Road although there is a septic tank in the building. He requested to be reimbursed for the sewer charge dating back to 1989.

Mayor Kelley directed the City Manager to have staff address Mr. Thompson's concern regarding this issue.

2. Ms. Mitchell of 14240 NW 22nd Avenue, Apt. 3, Opa-locka, Florida, appeared before the City Commission to voice her concern relating to the possibility of sexual offenders being housed at the jail facility on State Road 9.

Being aware of the issue Ms. Mitchell spoke about, Mayor Kelley said the Commission is following up and will address it.

Additionally, Ms. Mitchell inquired about whether the Opa-locka Football and Cheerleading programs will continue because there had been some issues.

Manager Finnie advised that although there was a slight management change, the Football and Cheerleading programs would remain in place.

Mayor Kelley directed the City Manager to communicate that information to the parents perhaps by way of a flyer or letter.

3. Eddie Jones of 13815 NW 24th Avenue, Opa-locka, Florida, came forward and stated that as a volunteer baseball coach at the parks, he wanted to know if the city would be having a baseball program in Opa-locka.

Mayor Kelley commended Mr. Jones for having a passion for coaching and said he would like to see more baseball at the parks.

Manager Finnie explained the change in management in the city's Parks & Recreation Department and that Mr. Brown's assignment would be to build the city's competition in all sports areas. He encouraged Mr. Jones to contact the new director of Parks & Recreation, Starex Smith.

4. Irma Skiles of 14261 NW Irma Skiles Court, Opa-locka, Florida, appeared before the City Commission and expressed her concern relating to a huge tree planted by the city in which some of the roots have begun to uproot a portion of the sidewalk directly in front of her walkway.

Mayor Kelley informed Mrs. Skiles that her concern would be addressed.

5. William Burden of 1311 Sharazad Boulevard, Opa-locka, Florida, appeared before the City Commission and spoke about President Barack Obama's stimulus package and having jobs available in the city as a part of that.

Mayor Kelley advised that the City of Opa-locka currently had a hiring freeze; however, he didn't know of any developments in terms of jobs other than the jobs with the Census.

Manager Finnie clarified that President Obama had released stimulus monies which has been divided among the states. The State of Florida has the money and has not released it as of yet; therefore, while there is stimulus monies out there, it has not trickled down to local communities. Through the cities application for stimulus dollars, if all the projects are funded, he has made a priority for local employment.

6. Grace St. Louis of 221 Aladdin Street, Opa-locka, Florida, came forward and thanked everyone responsible for the city's summer youth program. She continued by mentioning that she noticed work being done on sidewalks throughout the city and asked whether the city would ever complete the sidewalk on Aladdin Street.

Manager Finnie said he would have the sidewalk inspected on Aladdin Street and get back with the resident in writing.

Mrs. St. Louis further thanked the City Commission and staff for erecting the signage and boarding up the vacant homes as previously requested.

7. Kelly Simmons and Tyrell Leggett, both participants of the Opa-locka Workforce Learning Summer Program came forward on behalf of all participating youth and presented Certificates of Appreciation to the members of the City Commission and various city departments as a token of gratitude for their commitment and dedication for the summer work program.

Commissioner Johnson commended and thanked the OWLS for their commitment of painting 2 houses per week for a total of 14 houses.

8. Alvin Burke of 540 Sharar Avenue, Opa-locka, Florida, appeared before the City Commission on behalf of the citizens and children of the city and expressed his frustration with the recent change made to certain personnel in the city's Parks & Recreation Department.

9. Bernard Evans of 620 Curtiss Drive, Opa-locka, Florida, appeared before the City Commission and asked about repairs to the pump station on NW 135th Street. He expressed his concerns relating to the conversation at a previous meeting re: the DJJ/Opa-locka Youth Academy program and suggested that the city keep this program and the resolutions adopted for streetnamings and the event to be held on October 31, 2009.

He commented on workshop re: water & sewer rates and expressed the importance of finding the leakage of water.

He further spoke in favor of Bryan Finnie as Interim City Manager and suggested that the Commission allow him to do his job up until December instead of going out for a search which in his opinion is affecting the manager's job performance.

Manager Finnie provided a brief explanation to Mr. Evan's concerns regarding the pump station and subsidizing the DJJ program.

Commissioner Holmes explained to Mr. Evan's that one of his colleagues sponsored a resolution for a moratorium on streetnamings because of the amount of monies being spent and that same colleague sponsored another resolution to spend $5,000.00 for a costume party on October 31, 2009.

10. Sandra Cunningham of 13815 NW 23rd Avenue, Opa-locka, Florida, appeared before the City Commission and expressed her gratitude for repairing the sidewalks.

11. Sheila Pruett of 2295 NW 140th Terrace, Opa-locka, Florida, came forward and thanked the city for addressing her concerns and requests from previous meetings.

12. Albert Jones, 36 year resident of Opa-locka and participate of the Seniors on the Move program came forward and spoke on behalf of Charles Brown, Edna Hardy and Kenneth Pinkney. He further disagreed with the decision made relating to Mr. Brown's position in the Parks & Recreation Department.

11. ACTION ITEMS (items from consent agenda pull list):

15-2. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ENTER INTO AN AGREEMENT WITH SOCIAL COMPACT, INC., FOR TECHNICAL ASSISTANCE IN ORDER TO SUPPORT THE CITY'S APPLICATION TO THE U.S. CENSUS BUREAU'S CHALLENGE PROGRAM, IN AN AMOUNT NOT TO EXCEED TWENTY FIVE THOUSAND DOLLARS ($25,000.00), PAYABLE FROM ACCOUNT NO. 19-519312. *Sponsored by C.M.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above resolution.

Commissioner Johnson asked whether the City Manager and the City Clerk had prior dialogue on the above matter to make sure they were on the same page. In speaking to the City Clerk, there seems to be no need for this assistance.

Manager Finnie said he had discussed this item with the City Clerk.

Commissioner Johnson asked Clerk Irby whether she was in support of the above resolution.

Clerk Irby agreed that she was in support of this item with a little doubt. This assistance would be needed in the long run because she doesn't want the city to end up undercounted as in 2000. However, she did not have the opportunity to meet with Social Compact, Inc. on this matter.

Vice Mayor Taylor expressed her support for the above resolution because in 2000 the city was undercounted and this company would challenge the numbers given by the Census Bureau.

Commissioner Johnson said also supported this resolution; however, she just wanted to make sure both the City Manager and the City Clerk were on the same page.

Mayor Kelley said that the census numbers always impact funding so there's always a need to make sure the numbers are accurate. He further said that if the City Clerk who is the point person with the census is comfortable with this item then he would support it.

There being no further discussion, the motion passed by a 4-0 vote.

Commissioner Tydus	Not present
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

15-3. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ISSUE A REQUEST FOR PROPOSAL (RFP) FOR THE INSTALLATION OF TELEVISION BROADCAST EQUIPMENT FOR THE SECOND FLOOR OF THE TOWN CENTER ONE BUILDING. *Sponsored by C.M.*

The above resolution was read by title by Attorney Weeks.

It was moved by Vice Mayor Taylor, seconded by Commissioner Johnson to pass the above resolution.

Vice Mayor Taylor disagreed with the city spending money on the second floor of Town Center when the Commission Chambers at Historic City Hall is already in place for the commission meetings.

Commissioner Johnson recalled the city already spending money for the second floor at Town Center which included furniture. She understood that the above resolution was for cameras.

Mayor Kelley expressed his concerns relating to the cost which would have to come back before the Commission and issuing a Request for Proposal (RFP) when the city went out for an Invitation for Bid (IFB) in February.

Bernie Larralde, IT Director for the City of Opa-locka came forward and stated that the installation of television broadcast did go out as an Invitation for Bid (IFB) and there were guidelines set. When the firms responded to the bid, they could only quote those items specified in the bid. Unfortunately, all vendors submitted bids specifying different items so the city is not allowed to make a selection. He said the city is now going out for an RFP to be able to select a vendor.

Mayor Kelley said the city will always have this challenge when going out for an Invitation for Bid as oppose to a Request for Proposal. In the future, he suggested that the city consider issuing RFP's instead of IFB's to avoid any delays in the process.

Vice Mayor Taylor asked for further clarification in terms of having a commission chambers at Historic City Hall and one in the Town Center Building because she could not see the city affording both locations. She said she voted for the chairs and stage for the 2nd floor at Town Center but that was her limit because it seems like the city is setting up a dual operation.

Manager Finnie said that the question Vice Mayor Taylor was asking could only be answered by the five individuals sitting at the dais. That question being, under these economic conditions, is the city still committed to moving the Commission Chambers. In terms of the RFP versus Invitation for Bid, he said he couldn't speak on this scenario but in the past he used several strategies depending on if he felt comfortable that staff had a detailed understanding of what the city was asking for.

Commissioner Holmes explained that when the city initially moved to Town Center there were requests to move the Commission Chambers to the 2nd floor of that building. He informed the Commission that he would be in favor of moving the Commission Chambers to the second floor if the city were to purchase that building otherwise it would be a waste of money.

Commissioner Johnson recalled several years back when the Commission began to look for a new location for city offices because of the mold and mildew at Historic City Hall. The intent was to seek funding through grant opportunities to make the building a historical site. An application was re-submitted and the city is currently waiting on a response in terms of their request for funding.

Mayor Kelley clarified that the resolution is a request for proposals which doesn't obligate the city to any funds; however, in the future he recommended that staff decide

which way the city should go beforehand so that it is not a time consuming process. However, this item would still come before the Commission to accept the proposal(s) should the city decide to go that route.

Vice Mayor Taylor indicated that she understood what Mayor Kelley was saying; however, she was in agreement with Commissioner Holmes that all this is mute unless the city is going to own the building.

Mayor Kelley explained that the RFP process does not obligate the city to expend any funds; however, should the city decide to purchase the building then this process is already in place. Once the proposals are received then staff would know how much it would cost although it would not obligate the city to anything.

Vice Mayor Taylor expressed that this item would be a waste of time.

There being no further discussion, the motion passed by a 3-1 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Not present
Vice Mayor Taylor	No
Mayor Kelley	Yes

15.4: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE RENOVATION OF CITY OFFICE SPACE FOR THE CITY CLERK AND CITY COMMISSION AT A ONE-TIME COST OF EIGHT THOUSAND SEVEN HUNDRED NINETY-FIVE DOLLARS AND ZERO CENTS ($8,795.00), PAYABLE FROM ACCOUNT NO. 19-519461. *Sponsored by C.M.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above resolution.

Commissioner Holmes stated that if the city is going to secure the Offices of the City Clerk and City Commission then it should be done for all the city offices on the 4th floor at Town Center. He suggested that security be in place upon exiting the elevator on the 4th floor. He said he couldn't see the city spending this amount of money to secure one office leaving everyone else out in the open; perhaps the security on the 1st floor of Town Center can be tightened.

Commissioner Johnson said the cameras on the elevator and 1st floor allows the security to view everyone coming into the building up until they get off the elevator. She expressed her concern relating to the unarmed security should an armed individual walk into the building. She supported this security; however, in her opinion it is not enough

and it should not only be one office but for the entire 4th floor. She suggested that the city tie into the existing security at Town Center.

Vice Mayor Taylor explained that all other city offices have a barrier; however, in the Offices of the City Clerk and City Commission there is none. She further expressed her concerns relating to the security at those offices.

Manager Finnie stated that this resolution would address the security at the Offices of the City Clerk and City Commission as well as putting a buzzard at the desk near the elevator to allow access to certain offices in addition to an emergency button.

Vice Mayor Taylor asked, would the cost reflected in this resolution cover what the City Manager just stated because she doesn't want him coming back for more money?

Manager Finnie replied, yes, for that; however, Commissioner Holmes is correct, there is one additional issue that must be addressed.

Mayor Kelley voiced his concerns relating to looking at the security for the entire 4th floor because in going into other buildings with similar set up they have an armed officer and perhaps the city could look at getting a reserved officer. He directed the City Manager to have staff look at this issue and bring back a recommendation to address the security for the entire 4th floor.

There being no further discussion, the motion passed by a 4-0 vote.

Commissioner Tydus	Not present
Commissioner Johnson	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

6. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING A DEDUCTIVE CHANGE IN ORDER IN THE AMOUNT OF ONE HUNDRED AND FIFTY THOUSAND DOLLARS ($150,000.00) AND RELATING TO RESOLUTION 06-0929 FOR WORK NOT PERFORMED BY JOHNSON CONTROLS, INC. AND ASSOCIATED WITH THE REPLACEMENT AND INSTALLATION OF AN AUTOMATED METER READING SYSTEM. *Sponsored by C.M.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Holmes, seconded by Vice Mayor Taylor to pass the above resolution.

Commissioner Holmes asked for an explanation on the above item.

Manager Finnie explained that $150,000.00 was allocated for wireless cameras and the city is changing the original purchase order to utilize the $150,000.00 for installation of meters to be completed by the city.

Commissioner Johnson asked, would this exclude those meters missed?

Manager Finnie stated that there were 800 meters not embraced in the original calculations and the city is now retrieving those dollars to address those meters identified.

Commissioner Johnson asked for a report on Johnson Controls, Inc. by Monday, July 27, 2009.

There being no further discussion, the motion passed by a 4-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Not present
Mayor Kelley	Yes

12. NEW ITEMS:

2. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING THE SETTLEMENT AGREEMENT IN THE MATTER OF CITY OF OPA-LOCKA VS. KUBICKI DRAPER, P.A. AND M SECURITIES INVESTMENT, INC. AND AUTHORIZING THE CITY MANAGER TO ACCEPT PAYMENT FROM SAID DEFENDENTS IN THE TOTAL AMOUNT OF THIRTY SEVEN THOUSAND FIVE HUNDRED DOLLARS ($37,500.00), AS FULL AND FINAL SETTLEMENT OF ALL CLAIMS AND DISMISSAL. *Sponsored by C.A.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above resolution.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Tydus	Not present
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

3. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ACCEPTING AN AWARD OF COMMUNITY DEVELOPMENT BLOCK GRANT (CDBG) FUNDS FROM THE MIAMI-DADE COUNTY OFFICE OF

COMMUNITY AND ECONOMIC DEVELOPMENT (OCED) FOR FISCAL YEARS 2002-2009 IN THE AMOUNT OF SEVENTY FIVE THOUSAND DOLLARS ($75,000.00) FOR THE SHERBONDY PARK IMPROVEMENT PROJECT; FURTHER AUTHORIZING THE CITY MANAGER TO ENTER INTO AND EXECUTE AN AMENDMENT TO THE AGREEMENT BETWEEN THE CITY OF OPA-LOCKA AND OCED FOR ACCEPTANCE OF CDBG GRANT FUNDS. *Sponsored by C.M.*

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Not present
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

13. PLANNING & ZONING:

A. HEARINGS:

B. APPEALS:

14. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING:

1, AN ORIDNANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA; AMENDING CHAPTER 2, ARTICLE I, SECTION 2-8.4 OF THE OPA-LOCKA CODE OF ORDINANCES ENTITLED "SEARCH COMMITTEE ESTABLISHED" BY PERMITTING THE CITY COMMISSION TO SERVE AS THE SEARCH COMMITTEE; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by D.J.*

The above ordinance was read by title by Attorney Weeks,

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above ordinance on first reading.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Johnson	Yes
Vice Mayor Taylor	Yes
Commissioner Tydus	Not present

Commissioner Holmes	Yes
Mayor Kelley	Yes

2. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA,; AMENDING CHAPTER 21, ARTICLE II, SECTION 21-77 OF THE CITY OF OPA-LOCKA CODE OF ORDINANCES, ENTITLED "SCHEDULE OF RATES GENERALLY" BY AMENDING PROVISIONS RELATED TO WATER RATE INCREASES FOR FISCAL YEARS 2008-2009, 2009-2010, 2010-2011, 2011-2012 AND 2012-2013; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by T.H.*

The above ordinance was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above ordinance on first reading.

Commissioner Johnson asked the City Manager if he will have enough time between now and second reading to review the water rates.

Manager Finnie responded by saying that he would provide a report to the Commission by September on the Manager's plan to address this issue.

After listening to citizens complaints regarding the high water bills for many months, Commissioner Holmes stated that he brought those concerns to the dais on many occasions. This ordinance would stop the increase from October 1, 2010. The City Commission must address this issue and put something in place to give the citizens some type of relief.

He further stated to the City Attorney that he would like to bring something back to deal with rate change in terms of consumption.

Vice Mayor Taylor said she understood and agreed with what Commissioner Holmes was trying to accomplish. She continued by asking whether the sewer rates are also addressed in the ordinance.

Commissioner Holmes advised that the ordinance addresses both water and sewer.

Since the city had become solvent, Vice Mayor Taylor asked, why does the city continue to raise the water rates? The city was at a point where it came out of financial emergency and if that is stable then the water rates should remain stable.

She continued by saying that something is not right and the water can be brought down; therefore, she directed the City Manager to proceed with having an independent audit of the enterprise fund which is funded by the water, sewer, and sanitation.

Commissioner Johnson reminded the City Manager that his limitation on spending is $3,500.00 and whatever he decides to do must be brought back to the Commission for review. Although she supported the reduction in water rates she said she would like to see the City Manager look at multiple solutions keeping in mind that the county may increase their rates for water as well.

Commissioner Holmes spoke about the 4 Million Dollar cost to the city for the new meters and because that debt has already been paid, the city shouldn't have a problem in giving this much needed relief to the citizens.

Mayor Kelley said it was very interesting that the water & sewer issue had been around for a very long time and the Commission did step up to the plate based on recommendations from the City Manager and outside consultants at that time. He agreed that it wasn't easy for the Commission to pass water rates increases on to the citizens and the city must do whatever possible to lessen the burden. However, the City Manager must make sure the city doesn't go back to having the general fund subsidizing the enterprise fund. He said he didn't have a problem with having an audit or looking at the tier but the city must remain solvent.

He further suggested that the City Manager look at all possible options as mentioned by his colleagues and bring back a recommendation prior to the next regular meeting. Additionally, he directed that staff provide a report on the impact should the Commission decide to freeze the water rates. In order to consider this ordinance for second reading, the Commission must have all information of what the impact would be. He agreed to support the above ordinance on first reading with the understanding that the City Manager has 30 days to come back with recommendations, suggestions, etc.

There being no further discussion, the motion passed by a 4-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Tydus	Not present
Commissioner Johnson	Yes
Mayor Kelley	Yes

B. **SECOND READING/PUBLIC HEARING:**

C. **RESOLUTION(S):**

15. ADMINISTRATION:

CONSENT AGENDA:

1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, REQUIRING THAT THE CITY MANAGER, CITY ATTORNEY

AND CITY CLERK MEET PRIOR TO EACH REGULARLY SCHEDULED CITY COMMISSION MEETING. *Sponsored by T.H.*

5. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO MAKE PAYMENT TO PAWA ARCHITECT AND ENGINEERS, INC., IN THE AMOUNT OF TWELVE THOUSAND EIGHT HUNDRED DOLLARS ($12,800.00) FOR ADDITIONAL DESIGN SERVICES REQUIRED TO COMPLETE THE CURTISS DRIVE/PERVIZ AVENUE ROADWAY REHABILITATION PROJECT, PAYABLE FROM ACCOUNT NO. 44-541804. *Sponsored by C.M.*

7. A RESOLUTION OF THE CITY COMMISISON OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ENTER INTO AND EXECUTE AMENDMENT NO. 2 TO DEP AGREEMENT NO. LP6768 BETWEEN THE CITY OF OPA-LOCKA AND THE STATE OF FLORIDA DEPARTMENT OF ENVIRONMENTAL PROTECTION (DEP) FOR THE N.W. 143RD STREET STORMWATER DRAINAGE/ROADWAY PROJECT. *Sponsored by C.M.*

8. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ISSUE AN INVITATION TO BID (ITB) FOR THE CONSTRUCTION OF SHERBONDY PARK PHASE ONE IMPROVEMENTS. *Sponsored by C.M.*

9. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ISSUE AN INVITATION TO BID (ITB) FOR THE DEMOLITION OF THE OLD WATER PLANT. *Sponsored by C.M.*

11. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANGAER TO ISSUE A REQUEST FOR PROPOSALS (RFP) FOR THE TOWING AND STORAGE OF VEHICLES. *Sponsored by C.M.*

12. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, PIGGYBACKING THE CONTRACT BETWEEN THE STATE OF FLORIDA AND DELL MARKETING LP, ACCEPTING THE QUOTE FROM DELL MARKETING LP AND AUTHORIZING THE CITY MANAGER TO EXPEND FUNDS IN THE AMOUNT OF SEVEN THOUSAND AND EIGHT DOLLARS ($7,008.00) FOR THE PURCHASE OF TEN (10) DELL COMPUTERS FOR A COMPUTER LAB AT INGRAM PARK, PAYABLE FROM ACCOUNT NO. 74-529481. *Sponsored by C.M.*

The above consent agenda resolutions were read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the consent agenda resolutions 1, 5, 7, 8, 9, 11 and 12.

The motion passed by a 4-0 vote.

Commissioner Tydus	Not present
Commissioner Holmes	Yes
Vice Mayor Taylor	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

A. CITY MANAGER'S REPORT:

In moving forward, Manager Finnie indicated that he would have each department give a report to the Commission on their activity over a certain period of time. The highlights to his report were the Opa-locka Police Department and the new Office of Community Services. He introduced the two staff members in the Office of Community Service.

Kiera Ward, Coordinator and Sequilia Holmes, Project Manager of the newly created Office of Community Services located inside the City Manager's Office came forward and gave a brief presentation on the services provided to address the large volume of citizen complaints voiced not only at the commission meetings but also at community organization meetings.

Chief James Smith, Assistant Deputy Chief Cheryl Cason, Major Evelyn Barrett, Captain Vincent Robinson, Captain Rex Galindo and Captain Phil Mendino of the Opa-locka Police Department came forward for a presentation on community policing. The community policing concept was presented and spearheaded by Assistant Deputy Chief Cason to construct a partnership with the community in order to build a safer and more secure environment.

Mayor Kelley stated that the reason for the community policing is because the Commission worked very hard in Washington supporting legislation which was almost kneeled under President's Bush administration.

Commissioner Johnson directed the City Manager to get with the Opa-locka Community Development Corporation (CDC) regarding an article that appeared in the newspaper. She said she received telephone calls from several police officers who were interested in becoming reserved officers for the Opa-locka Police Department.

She continued by expressing her concern relating to the passing of senior citizens in the city and the only persons in attendance at the funeral is the Commission and the City Clerk. However, staff should be more sensitive to that and she had not seen staff engaged.

She further directed the City Manager follow up on the bus shelters and make it a priority because she is still not seeing bus shelters in key areas in addition to the lack of the city logo on the current ones.

Commissioner Holmes expressed his concern relating to Commission approval on the RFP for Residential Solid Waste Collection and Disposal which has yet to be advertised. Additionally, he said that the contract for the commercial was up and not the one for residential. He encouraged the City Manager to look at the solid waste contracts both residential and commercial to make sure there are no errors.

He continued by saying that the City Manager and the Human Resources has busted the employee union and that should not be. The Human Resources Department has relocated the two employees that worked in that department to hire family members.

He further stated that when the resolution for My Lawn Service, Inc. was on the agenda the City Commission instructed the City Manager to bring a resolution back to go out for bids and now he is bringing back another resolution for My Lawn Service, Inc. to extend the contract for 90 days. He said that when he gives a directive he expects the City Manager to follow through.

He expressed his dissatisfaction with the City Manager's job performance and suggested that he submit his resignation.

Vice Mayor Taylor thanked the City Manager for the newly created Office of Community Services and the police presentation regarding community policing. She requested that the City Manager include money in the budget for striping of the roads throughout the city.

She expressed her concern relating to the maintenance of property on the corner of NW 135th Street and the Lejeune Connector and the field near Segal Park that is over a lake and will produce snakes. She requested that the city follow the process and maintain the overgrown properties throughout the city.

She continued to strongly suggest that there be an independent audit of the Enterprise Fund.

Commissioner Holmes expressed his concerns relating to a huge tree on Jann Avenue and Golf Course Drive and putting in place emergency housing in case of a hurricane.

Manager Finnie advised that there is mention in the Hurricane Plan that the city deliver emergency housing and a site has been identified.

Commissioner Holmes stated that the ordinance on the water and sewer rates didn't have anything to do with giving the citizens relief but just to stop the increases from 2010. He indicated that the City Manager was suppose to bring him a report back on the feasibility of Miami-Dade County taking over the city's water & sewer operations but he has yet to receive anything.

He further suggested that the City Manager look into different ways to deal with the high water bills.

Mayor Kelley expressed his discontentment with seeing the lawn maintenance agreement extension on the agenda. In terms of ratifying agreements which he understands must be done in emergency situations, he wants to make sure those come back before the City Commission.

As it related to the newly created Office of Community Services, he said he understood the need for registered complaints but he is concerned about the fact that the citizens need to voice their concerns in the first place because there's already staff in place who should be addressing them in a professional fashion. He reiterated that individuals who citizens come in contact with from any given department should be professional to make sure they attempt to address issues and concerns.

He further stated that he'd asked the City Manager to provide the Commission with a report once the re-organizational structure was completed but that did not occur. He expressed his discontentment with the fact that he has to hear from the community what is taking place, what's been changed and/or staff being shifted. This information should be provided in a report from the City Manager to the City Commission in order for them to be able to convey the information to the citizens.

Mayor Kelley assumed that the city was on target with the improvements and grants since the City Manager didn't make mention of it; however, he is still concerned with the lakefront portion at Ingram Park in which there was a request for funding, Segal Park and the city's Website. He said it is taking too long to get responses for many of the city's projects which should have already been in progress. He requested an update on these projects.

Lastly, as a former employee and current member of the City Commission since 2000, he said he didn't want to ever hear from any employee about them being belittled, talked down to as though they don't have any sense whether they are a department director or the lowest person on the rate scale because everybody is due respect and he wants to see an improvement on this.

Commissioner Holmes reiterated that he was not satisfied with the City Manager's job performance.

B. ACCOUNTS PAYABLE:

Ezekiel Orji, Finance Director for the City of Opa-locka came forward and stated that the city is paying its bills.

Commissioner Johnson asked, when can the City Commission expect their quarterly report?

Mr. Orji advised that the next quarterly report would be provided at the first meeting in September since the Commission is off in August.

Although the City Commission will be on break during the month of August, Commissioner Johnson said she would still like to receive her quarterly report which is due the end of July.

Mr. Orji agreed to provide the Commission with the quarterly report by the end of July 2009.

16. OFFICIAL BOARD REPORTS:

17. CITY ATTORNEY'S REPORT:

Attorney Weeks requested advice from the Commission on three litigation cases that the City Attorney's Office is working on and recommended that shade meetings are held after the special meeting on July 30, 2009 at 30 minute intervals starting at 6:30 p.m. if acceptable.

After brief discussion, the Commission agreed to schedule the three separate shade meetings starting at 5:15 p.m.

Pursuant to Florida Statutes, Section 286.011(8), Attorney Weeks announced that attorney/client sessions would be held at the special meeting of the Opa-locka City Commission on Thursday, July 30, 2009 in the City Commission Chambers, 777 Sharazad Boulevard, Opa-locka, Florida to consider settlement negotiations in the following cases:

5:15 p.m. – 5:30 p.m.	Steven Barrett v. City of Opa-locka, Case No. 06-04499 CA 23, Circuit Court case of the Eleventh Judicial Circuit in and for Miami-Dade County, Florida.
5:30 p.m. – 5:45 p.m.	City of Opa-locka v. Bellesouth Telecommunications, Inc., Case No. 09-48376 CA (01), Circuit Court case of the Eleventh Judicial Circuit in and for Miami-Dade County, Florida.
5:45 p.m. – 6:00 p.m.	Scott Miller, et al., v. City of Opa-locka, Case No. 07-39942 CA (09), Circuit Court case of the Eleventh Judicial Circuit, in and for Miami-Dade County, Florida.

The attorney-client sessions shall be closed to the general public. Upon conclusion of the attorney-client session, the special City Commission meeting of July 30, 2009 shall be reopened.

Attorney Weeks informed the City Commission that the City Attorney's Office would prepare the notices and forward to the City Clerk's Office.

As a result of the workshop meeting regarding the city's charter issues, she said she was directed to meet with the City Commission individually. She had gone through the charter and Code of Ordinances and compiled notes which would be provided to the Commission. She requested to schedule the individual meetings with the Commission starting on August 17, 2009.

Attorney Weeks made reference to an issue that came up during the last commission meeting regarding DJJ, agenda 15-3 dealing with the Opa-locka Police Academy and the discussion was whether it should be done as an ordinance or a resolution. She said she provided the City Manager with the information that having that item done as a resolution would be fine because it does not involve the payment of monies in the actual contract; however, in doing that there was also discussion about setting up a 501c3. After doing some research on that issue, that 501c3 would have to be set up by the entity trying to obtain the funding as oppose to the city. In addition, she clarified the discussion relating to bids, according to the city code, the invitation to bid is when the city is capable of defining the scope of work and the request for proposals is when the city is not capable of specifically delivering the scope of the work.

Lastly, she reported that she attended the annual Municipal Attorneys Conference in Bonita Springs hosted by the Florida League of Cities.

Commissioner Johnson said she was glad to hear about the Bellsouth issue. In addition to that, she requested that the City Attorney bring back a resolution in September for the lawn services to be done in-house as well as a resolution dealing with public records request to go through the City Clerk's Office in order to have a process in place and have one central location.

Vice Mayor Taylor asked for an update on her request for documentation on Resolution 5058 regarding the fair share agreement with local businesses.

Attorney Weeks advised that the City Clerk's Office did provide the ordinance which provides for procedures that must be put in place to support when the city is dealing with the vendors and trying to distribute the contracts in a certain way. The City Attorney's Office could not identify the procedures.

Vice Mayor Taylor requested that she be provided with a copy of the ordinance.

Attorney Weeks said she would have to get with the City Manager and create procedures.

Vice Mayor Taylor directed the City Attorney to provide her with a copy of the ordinance and they'll work on the creation of procedures at a later time.

18. CITY CLERK'S REPORT:

Clerk Irby reported to the Commission that she was working diligently on the Census 2010 and over the past several days, she had tested and trained over 300 Opa-locka

residents for jobs. She announced that the 2010 Census Kick-Off would take place on Saturday, August 22, 2009 at Ingram Park.

19. MAYOR/COMMISSION REPORT:

Commissioner Holmes informed the citizens of Opa-locka that all of their complaints and concerns regarding the high water bills had not gone unnoticed and he is trying to help and do whatever possible to reduce the high cost of water.

Vice Mayor Taylor thanked her colleagues for working together for the betterment of the citizens and community. She said she would work on reducing the water rates. She thanked the City Manager and his staff for their hard work and she looks forward to working together for the good of the residents.

Commissioner Johnson reported that she had been conducting the youth violent prevention training; will continue working with the youth along with the Parks & Recreation Department and whatever resources in her reach she will continue to bring to the City of Opa-locka; and her organization teaming up with the Carrie Meek Foundation for a Back to School drive at the Opa-locka Executive Airport on August 8, 2009.

She announced that on Wednesday, July 29, 2009 at 6:00 p.m. she will be closing the summer camp in which she has 97 youth participants.

She further stated that there is unity and strength and the Commission's opposition is aimed towards bringing resources to the City of Opa-locka and its residents.

Mayor Kelley commended his colleagues for attending the homegoing service of Joyce Conley and Lenora Jones. He reported his attendance at a Florida League of Cities meeting and one of the challenges the elected officials are facing is how to deal with the state revenue shortfall as it relates to cities and unfunded mandates as well as the county budget and how they are going towards that. Like other cities, he has received telephone calls from residents who are very concerned about the social services to be cut. He has reached out to the County Commissioner and will continue to do that with others in terms of the impact some of those social service cuts will have in the community as it relates to the seniors and the youth.

He continued by saying that the city will be meeting the following week with FIU for the possibility of a new grant proposal in an effort to reduce unemployment through new grant initiatives.

Commissioner Johnson stated that she would be working with Miami-Dade College in terms of their grant application for weatherization. In terms of the Florida League of Cities meeting, Mayor Kelley identified a youth that will be in attendance and she too has identified a youth that will attend as well.

20. OFFICIAL BOARD APPOINTMENTS:

21. ADJOURNMENT:

There being no further business to come before the City Commission, it was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to adjourn the meeting at 9:55 p.m.

MAYOR

ATTEST:

CITY CLERK